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Case Number: 20STCV23203 Hearing Date: July 14, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

RICARDO ARMANDO NUNEZ,

Plaintiff,

vs.

SAN MARTIN DE PORRES MEDICAL CLINIC OF SOUTH GATE, INC.,

Defendant.

Case No.:

20STCV23203

Hearing Date:

July 14, 2026

Hearing Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT SAN

MARTIN DE PORRES MEDICAL CLINIC OF SOUTH GATE, INC.'S MOTION FOR MANDATORY
DISMISSAL

Background

On June 19, 2020, Plaintiff Ricardo Armando Nunez ("Plaintiff") filed a complaint against Defendant San Martin De Porres Medical Clinic of South Gate, Inc. ("San Martin"), alleging eight causes of action for (1) age discrimination, (2) FEHA retaliation, (3) violation of Labor Code §§510, 1194 & 1198 (unpaid overtime), (4) violation of Labor Code §2802 (reimbursements), (5) violation of Labor Code §§226.7 & 512 (meal and rest breaks), (6) violation of Labor Code §226(a) (inaccurate wage statements), (7) violation of Labor Code §§200-204 (waiting time penalties), and (8) violation of Labor Code §§1182.12-1194 (failure to pay minimum wage). On December 22, 2020, Plaintiff filed a first amended complaint. On May 17, 2021, Plaintiff filed a second amended complaint.

On September 27, 2021, San Martin filed a motion for summary adjudication, which was granted in part on March 4, 2022 as to the first cause of action for age discrimination.

On April 17, 2023, Plaintiff filed the operative third amended complaint ("TAC") against San Martin, alleging seven causes of action, omitting the previous first cause of action for age discrimination.

San Martin now moves to "dismiss[] this action with prejudice pursuant to Code Civ. Proc. § 583.310 and Code Civ. Proc. § 583.360." (Notice of Mot., 2:5-6.) Plaintiff opposes. San Martin replied.

Legal Standard

Code of Civil Procedure section 583.310 provides, "[a]n action shall be brought to trial within five years after the action is commenced against the defendant." Pursuant to Code of Civil Procedure section 583.360, "(a) An action shall be dismissed by

the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.”

“In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed: (a) The jurisdiction of the court to try the action was suspended. (b) Prosecution or trial of the action was stayed or enjoined. (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.” ((Id., § 583.340.) “[T]he Legislature has specifically stated that for purposes of that section impossibility, impracticability or futility must be due to causes beyond a party’s control.” (Westinghouse Electric Corp. v. Superior Court (1983) 143 Cal.App.3d 95, 105 (Westinghouse).) Pursuant to Code of Civil Procedure section 583.330, “[t]he parties may extend the time within which an action must be brought to trial pursuant to this article by...written stipulation” and “[b]y oral agreement made in open court, if entered in the minutes of the court or a transcript is made.”

Discussion

As noted above, this action was filed on June 19, 2020; thus, without any tolling, the five-year deadline would have expired on June 19, 2025.

San Martin contends that dismissal is proper because “[t]he five-year deadline expired solely because of Plaintiff’s failure to diligent[ly] prosecute the case. Plaintiff was not prevented from proceeding to trial by a stay, suspension of jurisdiction, or any circumstance outside his control. For 4.5 years, the case languished in litigation without much effort from Plaintiff (or his counsel). Then, on October 16, 2024, the parties entered into a settlement agreement.” (Mot., 5:7-15.)

It is undisputed that a settlement agreement tolls the five-year deadline because it makes it futile to bring an action to trial. (See Cal. Rules of Court, rule 3.1385(c)(4) [“the filing of a notice of conditional settlement

removes the case from the computation of time used to determine case disposition time.”.) However, the dispute here is how long the tolling period lasted. “[T]he ‘salient factor’ for applying the tolling exceptions in section 583.340(c) ‘is whether during the period covered by the agreement, [a plaintiff] would have been acting in bad faith and in violation of the spirit of the agreement by proceeding with the prosecution of the action.’” ((Seto v. Szeto (2022) 86 Cal.App.5th 76, 91 (Seto).)

The parties entered into a settlement agreement on October 16, 2024. The terms of which state that: “A. Defendant is to pay gross sum of \$200,000.00 in two installments by way of checks made payable to West Coas [sic] Trial Lawyers, Client Trust Account: (1) By 10/26/24, \$100,000.00; and (2) By 12/20/24, \$100,000.00. B. If the settlement funds are not paid in full by the court hearing set in response to the Notice of Settlement filed, then the agreement is null, and Plaintiff will seek a trial date.” (Stip. Settlement 10/16/24, 1:16-25; Lopez Decl., ¶1, Ex. 1.) The Court’s Minute Order from October 18, 2024, states that “[p]ursuant to the Notice of Settlement filed on 10/16/2024, the Court sets the following: Order to Show Cause Re: Dismissal is scheduled for 12/05/2024 at 10:00 AM in Department 50 at Stanley Mosk Courthouse.” (Lopez Decl., ¶2, Ex. 2.) After failing to receive the first payment pursuant to the settlement, on November 26, 2024, Plaintiff filed a petition to enforce settlement.

San Martin asserts that “the settlement agreement was in effect for, at most, 50 calendar days. [O]n October 16, 2024, the parties executed a settlement agreement. It is undisputed that by November 26, 2024, the agreement was breached. On that day, Plaintiff filed a motion to enforce the settlement agreement predicated on the breach of the agreement, due to non-payment. He deliberately and strategically filed a motion to enforce the settlement, which was unsupported by the settlement agreement, rather than restore the case to the litigation track and seek a trial date, as supported by the settlement. This was his ‘tactical choice’...” (Mot., 11:25-12:3.)

San Martin further asserts that “[b]y filing a motion predicated on the breach of an agreement, Plaintiff admitted that the agreement was no longer ‘in effect’ as of November 26, 2024. The settlement agreement was thus in effect, by Plaintiff’s own admission, for 41 calendar days, extending the five-year deadline to July 30, 2025.” (Mot., 12:13-16.)

Plaintiff refutes this point by

asserting that “motion to enforce a settlement agreement does not constitute an admission that the agreement has been breached, nor does it render the agreement null and void so as to require the plaintiff to seek trial on the underlying claims. A motion to enforce is an action for specific performance of a contract.” (Opp., 8:2-5.)

Plaintiff’s opposition also

contends that the settlement agreement should, at a minimum, be tolled through December 20, 2024, when the final payment was due, because the agreement was still operative. Plaintiff asserts that “California courts consistently hold that a settlement agreement with installment payments remains ‘operative’ for tolling purposes under CCP § 583.340(c) until the final payment becomes due, regardless of earlier breaches or missed payments... The settlement agreement’s payment schedule created obligations extending through December 20, 2024, regardless of the defendants’ earlier breach.” (Opp., 8:20-28.)

Plaintiff further contends that,

ultimately, the timeline should be tolled by 14 months because “the Agreement’s terms required Plaintiff to ‘seek a trial date’ if Defendant did not pay the settlement sum. (See Exh. ‘A.’) Plaintiff did so by way of Motion to Restore the Case in August 2025 after his Petition to Enforce the Settlement was denied in June 2025.” (Opp., 9:28-10:2.)

A settlement tolls the five-year

period during the time when the settlement is operational (See *Brown & Bryant, Inc. v. Hartford Accident & Indemnity Co.* (1994) 24

Cal.App.4th 247, 257 [“the five-year period is nevertheless tolled for the period the agreement was in effect.”]) When San Martin did not pay its first installment, Plaintiff chose to try to enforce the settlement agreement rather than comply with the express term of the settlement agreement which stated that “the agreement is null, and Plaintiff will seek a trial date.”

(Lopez Decl., ¶1, Ex. 1.) The court in *Seto*,

supra, 86 Cal.App.5th at p. 87 stated when discussing conditional

settlements, a “line of cases holds that ‘the time during which a settlement agreement is in effect tolls the five-year period, for the reason that

attempting to bring an action to trial when all issues have been resolved

through settlement would be futile’ within the meaning of section 583.340(c).” However, because of the settlement

agreement’s nullity provision, Plaintiff “would [not] have been acting in bad

faith and in violation of the spirit of the agreement by proceeding with the

prosecution of the action.” (Seto, supra, 86 Cal.App.5th at p. 91.)

Moreover, “[b]ecause the purpose of the dismissal statute ‘is to prevent avoidable delay, ... [section 583.340, subdivision (c)] makes allowance for circumstances beyond the plaintiff’s control, in which moving the case to trial is impracticable for all practical purposes.” (Tanguilig v. Neiman Marcus Group., Inc. (2018) 22 Cal.App.5th 313, 323.) However, Plaintiff’s decision to enforce the settlement agreement, rather than “seek a trial date” as the settlement agreement explicitly prescribed, demonstrates that the delay was within Plaintiff’s control.

Plaintiff also asserts that equitable estoppel supports overcoming dismissal. Plaintiff cites a few cases in support, one of which is Borglund v. Bombardier, Ltd. (1981) 121 Cal.App.3d 276, 281, where the Court of Appeal reasoned that “[i]f a trial court encounters statements or conduct by a defendant which lulls the plaintiff into a false sense of security resulting in inaction, and there is reasonable reliance, estoppel must be available to prevent defendant from profiting from his deception. By following the rule of Tresway, we move away from the rigid application of a few limited exceptions to section 583, subdivision (b), and rather adopt a rule that permits substantial justice to triumph over form.” Plaintiff asserts that “the facts fit squarely within these authorities and are considerably stronger than the typical estoppel scenario. Unlike cases involving ambiguous scheduling statements or informal settlement discussions, here the defendant entered into a written, court-filed settlement agreement... Having settled the matter, Plaintiff had no reason to continue preparing for trial because the parties had negotiated a resolution that contemplated dismissal upon payment. Defendant, rather than comply with the Settlement Agreement, through its nonpayment and lack of response left Plaintiff with the choice either to abandon the negotiated resolution or pursue enforcement.” (Opp., 12:27-13:6.) Further, Plaintiff asserts that “[i]nstead of immediately restoring the case to the trial calendar and incurring further litigation costs, Plaintiff sought to effectuate the settlement the parties had already negotiated by filing a Motion to Enforce Settlement Agreement in a good-faith effort to secure compliance and avoid unnecessary litigation.” (Opp., 13:7-10.) Lastly, Plaintiff contends that “[h]ad Defendant complied with the Settlement Agreement, Plaintiff would not have been forced into settlement enforcement proceedings or delayed in restoring the case to the trial calendar.” (Opp., 13:13-15.)

San Martin points out in its response, that "Plaintiff's opposition identifies no specific representation or affirmative conduct by Defendant that induced any delay... Nonpayment of a settlement and the absence of further communication are not affirmative conduct capable of lulling a represented plaintiff into a false sense of security; they are, at most, a breach -- and a breach is what triggered Plaintiff's own motion to enforce in the first place. As the dissenting opinion in Tresway recognized, a substantial body of California authority holds that conduct which merely fails to prevent a plaintiff's inaction, without some affirmative act inducing that inaction, does not satisfy the estoppel doctrine." (Reply, 7:23-8:3.) Additionally, San Martin notes that "Plaintiff has never explained why, once the enforcement motion was denied on June 13, 2025, restoration could not have been sought immediately rather than roughly two months later." (Reply, 8:12-13.)

Based on the foregoing assertions, the Court finds that equitable estoppel does not apply. Although Plaintiff sought to enforce the terms of the settlement agreement, from the plain language of the agreement, it was "null" and Plaintiff's option was to "seek a trial date." Further, the Court previously discussed the parties' settlement obligations when it ruled on Plaintiff's petition to enforce settlement on June 13, 2025, reasoning that "the parties agreed in paragraph 1B of the Settlement Agreement that failure to make the payments in full by the designated date gave Plaintiff the option to declare the Settlement Agreement null and obtain a trial date. Obviously, Plaintiff was not obligated to declare the Settlement Agreement null if the deadline was missed; Plaintiff could wait longer for the payment if he wished to do so. But the Settlement Agreement does not state that Plaintiff may request entry of judgment in the amount of \$200,000 plus attorney fees if Defendant does not make the payments." (Order 6/13/25, 4:20-26.) Following San Martin's breach, Plaintiff had the choice to reinstate the trial date, wait for payment, or wait for the hearing on the motion to enforce the settlement. Plaintiff did the latter to enforce a conditional settlement agreement where the condition had not been satisfied. Plaintiff's failure to bring the case to trial or timely resolve the five-year deadline issue is due to Plaintiff's own choices after breach of the agreement.

Under the strict prescription of Code of Civil Procedure section 583.310, this case must be dismissed because the five-year deadline has passed. Plaintiff fails to demonstrate that the settlement made bringing the action to

trial “impossible, impracticable, or futile.” (Code Civ. Proc., § 583.340, subd. (c).) Accordingly, the Court finds it necessary to grant the motion to dismiss under the five-year statute.

Conclusion

Based on the foregoing, San Martin’s motion to dismiss is GRANTED. San Martin is ordered to file a proposed judgment within ten days of this Order.

San Martin is ordered to give notice of this Order.

DATED: July 14, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court